

56 & 57 Vict.
c. 56.

and eight of this Act shall be substituted for the reference to section seven of the Fertilisers and Feeding Stuffs Act, 1893; and for the purpose of instituting prosecutions the said department may take samples of any articles to which this Act applies which have been sold or are kept or exposed for sale.

Repeal.

13. The Fertilisers and Feeding Stuffs Act, 1893, is hereby repealed; provided that nothing in this repeal shall affect any regulation or appointment made under that Act, but every such regulation and appointment shall have effect as if made under this Act; and in Ireland an analyst holding office under the said Act both for a county and a non-county borough comprised in that county shall become the agricultural analyst for that county.

Short title and
commence-
ment.

14. This Act may be cited as the Fertilisers and Feeding Stuffs Act, 1906, and shall come into operation on the first day of January nineteen hundred and seven.

CHAPTER 28.

An Act to amend the Crown Lands Acts, 1829 to 1894.

[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

President of
Board of Agri-
culture to be
additional
Commissioner
of Woods.

1. The President of the Board of Agriculture and Fisheries for the time being shall, by virtue of his office, be a Commissioner of Woods under the Crown Lands Act, 1851, in addition to the Commissioners whom His Majesty has power to appoint under that Act, and any reference to those Commissioners in the Crown Lands Acts, 1829 to 1894, and in any other Act, shall be construed accordingly, but nothing in those Acts shall authorise the payment of a salary to the said President in his capacity of Commissioner of Woods, or render the said President incapable of being elected or of sitting or voting as a member of the House of Commons.

Power to
effect trans-
fers of the
management
of foreshore
between Com-
missioners of
Woods and
Board of Trade.

2.—(1) If it appears to the Treasury on the representation of the Commissioners of Woods and the Board of Trade that the transfer of any foreshore from the management of the Commissioners to that of the Board, or from the management of the Board to that of the Commissioners, would be convenient for the purposes of administration, the Treasury may by order make such a transfer, with or without payment in respect thereof, as they think fit, subject however and without prejudice to the rights and interests (if any) of any other person therein.

(2) Any foreshore transferred to the management of the Commissioners of Woods or the Board of Trade under this section shall be subject to the like provisions and dealt with in the same manner—

- (a) in the case of foreshore transferred to the management of the Board of Trade, as if it had been transferred under section seven of the Crown Lands Act, 1866, and compensation had been paid therefor to the land revenue of the Crown; and
- (b) in the case of foreshore transferred to the management of the Commissioners of Woods, as if it had been excepted from transfer to the management of the Board of Trade under the last-mentioned section.

3.—(1) If any claim to any foreshore on the part of the Board of Trade, the Commissioners of Woods, or the Chancellor and Council of the Duchy of Lancaster is disputed by any of those departments, the Board of Trade or the Commissioners of Woods with the consent of the Treasury, and the Chancellor and Council of the Duchy of Lancaster, may enter into an agreement for settling the dispute.

Power of Board of Trade, &c. to settle disputes as to foreshore.

(2) Any such agreement may provide for the payment to or by the Board of Trade or the Commissioners of Woods by or to the Chancellor and Council of the Duchy of Lancaster of any sum of money in satisfaction of any claim which the department, to whom the money is paid, may have had to the foreshore which is the subject of the agreement.

(3) Any agreement under this section shall be executed on the part of the Chancellor and Council of the Duchy of Lancaster under the hand and seal of the Chancellor, and attested by the clerk of the Council.

4. The power given to the Treasury by section one of the Crown Lands Act, 1866 (being a power to direct the costs of certain improvements to be charged to capital and repaid out of income), shall have effect as if the rebuilding and enlargement of the office of the Commissioners of Woods, the erection or re-erection of buildings, the construction or reconstruction of roads and bridges, and the enlargement or improvement of buildings, roads, and bridges, were improvements within the meaning of that section.

Power of Commissioners of Woods to pay for certain improvements out of capital.

5. No assignment of any lease of any part of the possessions and land revenues of the Crown under the management of the Commissioners of Woods, and no instrument affecting the devolution of any such lease, shall, after the passing of this Act, be enrolled in the office of Land Revenue Records and Enrolments, and any covenant contained in any such lease requiring any such assignment or instrument to be so enrolled is hereby annulled.

Abolition of enrolment of assignments, &c. of Crown leases.

6.—(1) The Commissioners of Works may under and in accordance with the Crown Lands Acts, 1829 to 1894, convey to a bridge authority willing and able to accept such a conveyance

Power of Commissioners of Works to convey bridges.

any bridge under the management of the Commissioners and any land required for the purpose of widening or improving any bridge, either unconditionally or subject to such conditions and upon such terms as may be agreed upon between the Commissioners and the authority, anything in those Acts to the contrary notwithstanding.

(2) For the purposes of this section the expression "bridge" includes the approaches to and abutments of a bridge, and the expression "bridge authority" means any local authority having the duty of the care and maintenance of bridges.

Power to transfer management of Richmond and Kew Greens.

7.—(1) Notwithstanding anything in the Crown Lands Act, 1851, it shall be lawful for the Commissioners of Works and the council of the borough of Richmond to enter into an agreement for the transfer from the Commissioners to the council of the control and management as open spaces of Richmond Green and Kew Green, and on the execution of such an agreement the Open Spaces Acts, 1877 to 1890, shall, subject to any conditions and reservations contained in the deed of transfer, apply as if the control and management of those greens had been transferred to the council under those Acts.

(2) The Board of Agriculture and Fisheries and the said council may, in like manner and with like effect, enter into an agreement for the transfer to the council of the control and management of the land, formerly part of Kew Green, which lies between Kew Green and the north-west entrance to the Royal Botanic Gardens, but until such transfer the land shall for all purposes continue to be deemed to be part of those gardens.

Apportionment of quit and Crown rents in Ireland.

3 Edw. 7. c. 37.

8. The powers relating to the apportionment and charging of quit rents and other perpetual rents payable to the Crown in respect of land in Ireland conferred on the Commissioners of Woods by section sixty-one of the Irish Land Act, 1903, may, at the request of the owner of any land liable to any such rent, be exercised by the Commissioners, although no part of the land liable to the rent is the subject of proceedings for sale under the Land Purchase Acts as defined by the Irish Land Act, 1903, and the said section shall apply accordingly.

Limitation of time for proceedings for recovery by Crown of quit and other rents.

9. No proceedings shall be taken by or on behalf of the Crown for enforcing the payment of any quit rent or any other perpetual rent payable to the Crown in Ireland, or any arrears thereof, but within sixty years from the time when such rent was last received by or on behalf of the Crown, and after the expiration of that period the right of the Crown to the rent and arrears shall be extinguished.

Payment and application of money.

10. Any money due from or received by the Board of Trade, the Commissioners of Woods, or the Chancellor and Council of the Duchy of Lancaster under this Act shall be paid or applied as if it had been payable or received for the purchase or sale of lands.

11. This Act may be cited as the Crown Lands Act, 1906, Short title and interpretation. and with the Crown Lands Acts, 1829 to 1894; and for the purposes of this Act the expression "foreshore" has the same meaning as in the Crown Lands Act, 1866.

CHAPTER 29.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) For the purpose of local loans there may be issued by the National Debt Commissioners the following sums, namely:— Grants for public works.

(a) For the purpose of loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of three million five hundred thousand pounds;

(b) For the purpose of loans by the Commissioners of Public Works in Ireland any sum or sums not exceeding in the whole the sum of seven hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.
c. 16.

2. Whereas it is expedient that the principal of the several local loans specified in the schedule to this Act should, to the extent specified in the last column of that schedule, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887; therefore, the principal of the said loans shall to that extent be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Certain debts
not to be
reckoned as
assets of local
loans fund.

3. The Public Works Loan Commissioners may further extend to the thirty-first day of December one thousand nine hundred and twenty-two the period for the repayment of their loan to the South Staffordshire Mines Drainage Commissioners which, under the provisions of the Public Works Loans Act, 1890, is repayable within a period expiring on or before the thirty-first day of December one thousand nine hundred and seventeen, and the said Loan Commissioners may suspend for any period not exceeding five years from the thirtieth day of June one thousand nine hundred and six, the payments of

Alteration of
terms of loans
to South Staf-
fordshire Mines
Drainage Com-
missioners.

53 & 54 Vict.
c. 50.